

Kamlendra v. State of U.P.

Allahabad High Court · Division Bench · 15 March 2021 · WRIT - C No. 5973 of 2021 · **Writ disposed of; petitioner relegated to section 127 appeal.**

HEADNOTE

After a section 135 inspection, unreplied provisional notice and final assessment, a writ against the consequent recovery notice is not the forum. The consumer's challenge to demand and disconnection lies in appeal under section 127 of the Electricity Act, 2003 read with Clause 6.8(d) of the U.P. Electricity Supply Code, 2005. Opportunity of objections having already been given, the final assessment cannot be faulted in writ.

FACTUAL SUMMARY

On 9 October 2020 Dakshinanchal Vidyut Vitran Nigam inspected the petitioner's premises at Mainpuri and registered a theft case under section 135. A provisional notice dated 12 October 2020 went by registered post; no reply was filed. A final assessment followed, and the Executive Engineer issued a recovery notice dated 28 November 2020. The petitioner, claiming to be a regular-paying consumer whose connection had been illegally disconnected, challenged that notice in writ.

HOLDING-UNITS

INTERPLAY · EA2003::127

[section-127-appeal](#)

HOLDING

Where a section 135 inspection is followed by a provisional notice, no objections, a final assessment and a recovery notice, a writ challenging that recovery and the disconnection is not the forum. The consumer's contentions lie in appeal under section 127 of the Electricity Act, 2003 read with Clause 6.8(d) of the U.P. Electricity Supply Code, 2005. Opportunity of filing objections having already been given, the final assessment cannot be faulted in writ. ¶ 1

PRINCIPLE TAGS

final-assessment-order-relegates-assessee-to-section-127-appeal Final assessment having been passed after an unreplied provisional notice, the High Court disposed of the writ against the recovery notice by relegating the petitioner to appeal under section 127 read with Clause 6.8(d). ¶ 1

alternate-remedy-section-127-appeal-bars-writ The contention that the petitioner was a regular-paying consumer whose connection had been illegally disconnected was held entertainable only in a section 127 appeal, not in writ. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — MERITS OF THE SECTION 135 THEFT ALLEGATION AND THE QUANTUM OF ASSESSMENT

Relegated to the section 127 appeal; the writ court did not examine either. ¶ 1

NOT DECIDED — LEGALITY OF THE DISCONNECTION

The claim of illegal disconnection of a regular-paying consumer was left to the appellate forum. ¶ 1